

DECLARATION OF PROTECTIVE RESTRICTIONS

DECLARATION, made this 15 day of Sept.,
1955, by James H. Cornell, Jr. and Sally S. Cornell,
husband and wife.

WHEREAS, James H. Cornell, Jr. and Sally S. Cornell, husband and wife as joint tenants, are the owners of a certain tract of land in the County of Los Angeles, State of California, and Harold L. Snow and Audrey O. Snow are the beneficiary under Deed of Trust recorded in Book 34516, Page 436, and Burley Johnson and Bessie B. Johnson are the beneficiary under Deed of Trust recorded in Book 45347, Page 229, assignment of which is recorded in Book 47637, Page 126, and Burley Johnson and Bessie B. Johnson are beneficiary under Deed of Trust recorded in Book 45347, Page 231, assignment of which is recorded in Book 45347, Page 233, Harlan Cross is beneficiary under Deed of Trust recorded in Book 47119, Page 392, all such recordings being in Official Records of Los Angeles County Recorder; said tract of land being described as follows:

"That portion of Lot "H" in Rancho Los Palos Verdes in the County of Los Angeles, State of California, allotted to Jotham Bixby by decree of Partition in action, "Bixby et al vs. Bent et al", Case No. 2373 in the District Court of the 17th Judicial District of said State, in and for said County of Los Angeles, and entered in Book 4, Page 57 of Judgments, in the Superior Court of said County, described as follows:

'Lots 1 to 50, both inclusive, Tract No. 20429, as per map recorded in Book 574, Pages 31 & 32, of Maps, in the Office of the County Recorder of said County.'"

Declarants hereby certify and declare that they have established and do hereby establish a general plan for the protection, maintenance, and improvement of said real property, and do hereby fix covenants, conditions, and restrictions, which shall be binding upon the grantees herein, and each of them, and their successors and assigns, and the successors and assigns of each of them and also in favor of the within described real property, and each part thereof, and in favor of the grantees thereof, and each of them, and said covenants, conditions, and restrictions shall run with the land conveyed hereby:

(1) No building, structure, or premises shall be erected or built upon the property within described, or any part thereof, which shall be used, designed, or intended to be used for any purpose other than a single family dwelling, or for and in connection with agricultural purposes; and further, the use and occupancy of said property, and each part thereof, shall be limited solely to the erection, construction, and maintenance of not more than one single family dwelling upon said property, and not more than one such dwelling shall exist thereon at any given time; for the purpose hereof a single family dwelling shall be deemed to mean a dwelling for one family alone, provided that reasonable quarters may be built and maintained in connection therewith for the use and occupancy of servants and guests, and provided further that Lot 20 may be divided into two parts, each of which shall be a separate property for application of the provisions and restrictions of this Paragraph (1).

(2) No residence placed upon said property shall be of such size as to have less than 1700 square feet of floor area exclusive of garages, covered porches, or patios should such construction commence after April 13, 1977. No building or structure shall be erected or maintained thereon of more than one story in height without the written approval of the Sunnyside Community Association after approval of plans is released to it as provided in Paragraph (4).

(3) The word "residence" as used in Paragraph (2) hereof shall include accessory building attached to the residence or garage, separate or attached, but shall be exclusive of outbuildings, landscaping or patio.

(4) No building, wall or other structure shall be erected or maintained upon said property unless complete plans therefor, showing the front, side, and back elevations thereof, the nature, kind, shape, height, and material therefor, and a plot plan indicating the location of such structure on the building site or lot to be built upon, shall have been submitted to, approved in writing by, and a copy of such plans as finally approved deposited with declarants until that power is released to the Sunnyside Community Association, after which the Association shall have the rights and powers of declarants as to plans.

(5) Private street access of Lots No. 1 and No. 20 to and from the highway, designated "Proposed future street" on said map of Tract No. 20429, shall be eliminated when said highway is constructed.

(6) All of said property shall be subjected to an annual assessment of not to exceed seventy-five cents per one hundred dollars of assessed valuation, as fixed by the County Assessor of Los Angeles County for the then current year for each lot or building site. The Association, through its Board of Directors, is hereby expressly delegated with the sole power and authority to fix the rate of such assessment (which shall in no event exceed the limitation herein prescribed), and to expend for the purposes hereinafter stated the money paid in on such assessments. This limitation may be waived with the consent of members entitled to exercise seventy-five per cent of the voting power of the Association.

Such assessments shall become due and payable at The Annual Homeowners' Meeting and shall become delinquent thirty days after the date upon which they shall become due and payable; and, if not theretofore paid, shall thereafter bear interest at the rate of ten percent per annum.

Without limitation of other remedies, the Association shall have the right, but shall be under no duty to file for record with the County Recorder of Los Angeles County, California, at any time within one hundred twenty days after delinquency, a claim of lien for the amount of such charges or assessments, together with interest as aforesaid, which shall have become delinquent with respect to any lot or building site. The aggregate amount of all such assessments and interest shall constitute a lien upon such lot and all improvements thereon, from the date that a claim of lien is so recorded, and such lien shall be prior to any and all existing or pre-existing liens and encumbrances, except the lien of any encumbrance theretofore made in good faith and for value. Upon payment in full of the amount of all such assessments, together with interest as aforesaid, the Association shall file for record a proper release of any claim of lien theretofore recorded; and such release so recorded shall fully protect any title company or other person insuring the title to such lot, and any purchaser or encumbrancer for value, relying thereon.

The lien hereinbefore provided may be enforced by the Association in the manner provided by law with respect to a mortgage or other lien on real property; and in the event of foreclosure the property owner shall pay all costs and expenses of foreclosure, including, among other things, court costs and reasonable attorneys' fees, all of which costs, expenses and fees shall be secured by such lien; provided, however, that no action to enforce such lien shall be commenced later than three years after the claim of lien shall have been recorded.

The Association shall have the power and authority to exercise the following, and to apply the money paid in on such assessments thereto:

(1) The costs and expenses of conducting the business of the Association.

(2) Maintenance and upkeep of roads and rights of ways for the benefit of said property or appurtenant thereto, and ornamental features now existing or hereafter to be erected on said property or for use in connection therewith.

(3) Installation, maintenance, and upkeep of water, light, and gas distributing systems or such other improvements of a community nature as may be acquired by the Association or by the owners of property in Tract No. 20429.

(4) Taxes and assessments, if any, which may be levied by any public authority upon any streets or rights of way owned or controlled by the Association or appurtenant to said Tract No. 20429, or upon any other improvements of a community nature.

(5) Expenses, if any, incident to the enforcement of the restrictions, covenants, and conditions herein contained and to the collection of said assessments herein provided for, including the expense incident to examination and approval of plans.

(6) Providing police protection and watchmen and lighting streets or other rights of ways for benefit of members of the Association.

(7) For any expense incurred by the Association for the benefit of the owners of property under its jurisdiction.

(7) Said annual assessments shall be determined and fixed for the ensuing year by the Association, through its Board of Directors, as the needs of said property may in its judgment require, subject to the limitation heretofore provided.

(8) That each and every owner of, and holder of contract to purchase a lot or building site, shall become automatically a member of the Association. Property of declarants is not subject to membership in the Association, provided that they may place any lots in membership, in which case they will have all the rights and obligations of a member as to each of such lots.

(9) That every owner of property shall keep his property and any improvements thereon in a neat, clean, and orderly condition, free from accumulations of waste or rubbish, and the question of whether or not any owner shall be in violation of this condition shall, at all times, be left to the sole decision of the Association. Should said Association feel that any owner is in violation of this condition, it shall cause written notice to be mailed to the last known address of such owner, specifying in what particular violation is claimed, and unless such owner shall, within fifteen (15) days after the mailing of said notice, commence to rectify such violation and complete such work when commenced, the Association may enter upon his property and correct the violation, specified in the notice, and any expense incurred therein shall be an obligation from the owner to the Association, and a lien and charge upon his property.

(10) That the declarants or the Association, by the assent of a majority of the members thereof, may place additional property adjacent to Tract No. 20429, or in the same neighborhood, with the assent of the owner thereof, under the jurisdiction of the Association, provided restrictions similar to those herein contained, affecting the rights and powers of the Association, are placed on such additional property.

(11) The restrictions, conditions, and covenants hereby established shall be covenants running with the land, and shall bind and inure to the benefit of and be enforceable by declarants, the Association, or by the owner or owners of any portion of said property, their and each of their legal representatives, heirs, successors, and assigns, and continuance of any breach thereof may be enjoined, abated or otherwise remedied by appropriate proceedings by declarants, the Association, or such other property owner, or their legal representatives, heirs, successors or assigns.

(12) A breach or breaches of any of the conditions, restrictions or covenants herein contained shall not affect, defeat, or render invalid the lien of any bona fide mortgage or deed of trust which shall have been given in good faith, and for value upon any lot or lots included in the above described property, or upon any portion of said property; provided, however, that all of said property shall be bound by these restrictions, conditions, and covenants, whether held under trustee's sale or otherwise.

(13) All of the conditions, covenants, and restrictions herein contained shall run with the land and continue until January 1, 2005.

(14) Any of the restrictions, covenants, and conditions herein specified respecting Tract No. 20429 may be annulled, waived, changed or modified by declarants and by the Association, after power of approval of plans is released to it, with the assent in either case of a majority of the members of the Association.

15 day of September, 1955.

James H. Cornell
James H. Cornell, Jr.

Sally S. Cornell
Sally S. Cornell

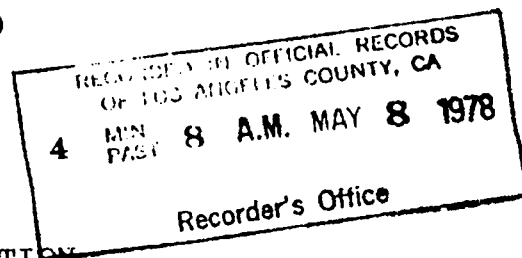
STATE OF CALIFORNIA)
) SS.
COUNTY OF LOS ANGELES)

On this 15 day of September, 1955, before me, a Notary Public in and for said County and State, personally appeared James H. Cornell, Jr. and Sally S. Cornell, known to me to be the persons whose names are subscribed to the within instrument, and acknowledged that they executed the same.

WITNESS my hand and official seal.

(SEAL)

C. W. Cornell
Notary Public in and for the County
of Los Angeles, State of California.



SUNNYSIDE COMMUNITY ASSOCIATION
DECLARATION OF PROTECTIVE RESTRICTIONS AMENDMENTS

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DECLARATION, made this 13 day of April, 1978 Exhibit "A" amending paragraphs 6, 7, 10, 12 and 15 of Declaration of Protective Restrictions made the 15th day of September, 1955 by James H. Cornell, Jr. and Sally S. Cornell, husband and wife, as to Tract No. 20429, Los Angeles County, California, and Exhibit "B" amending paragraph 2 of the 8 November, 1955 amendment.

Pursuant to Provisions of Declaration of Protective Restrictions made September 15, 1955, recorded September 30, 1955, in Book 49114, page 228 of Official Records, County of Los Angeles, California as to Tract No. 20429, as per map recorded in Book 574, pages 31 and 32 of Maps, in the office of the County Recorder of Los Angeles County, and with the assent of a majority of the members of Sunnyside Community Association, the Board of Directors of Sunnyside Community Association hereby declares and certifies (attached Exhibit "B") that said Declaration of Protective Restrictions is amended to read as follows:

AMENDMENTS OF PROTECTIVE RESTRICTIONS OF TRACT NO. 20429
made 15 September, 1955

(6) Second paragraph

Such assessments shall become due and payable at the Annual Homeowners' Meeting and shall become delinquent thirty days after the date upon which they shall have become due and payable; and, if not theretofore paid, shall thereafter bear interest at the rate of ten per cent per annum.

(7) Said annual assessments shall be determined and fixed for the ensuing year by the Association, through its Board of Directors as the needs of said property may in its judgement require, subject to the limitation heretofore provided.

(10) Deleted

(12) Deleted

(15) All conditions, covenants, and restrictions herein contained shall run with the land and continue until January 1, 2005.

AMENDMENT OF PROTECTIVE RESTRICTIONS AMENDMENT
made 8 November, 1955

(2) No residence placed upon said property shall be of such size as to have less than 1700 square feet of floor area exclusive of garages, covered porches, or patios should such construction commence after April 13, 1977. No building or structure shall be erected or maintained thereon of more than one story in height without the written approval of the Sunnyside Community Association after approval of plans is released to it as provided in paragraph (4).

Board of Directors Sunnyside Community Association

C. Sanacore, President

Marcia Carlson, Vice President

Ann LaFranchi, Secretary

A. Willard, Treasurer

78- 486653

Leo A. Connolly, Art Jury Chairman

Acknowledgment--(District) (Organization) (Association) etc.

STATE OF CALIFORNIA
County of

ss.

On April 13, 1978 before me, the undersigned, a Notary Public in and for said State, personally appeared C. Sanacore, known to me to be the President and Ann LaFranchi, known to me to be the Secretary of the Sunnyside Community Association the Association that executed the within instrument, and known to me to be the persons who executed the within instrument on behalf of the Association therein named, and acknowledged to me that such Association executed the same.

WITNESS my hand and official seal.

(Seal)



Signature

Norman David Peterson
Norman David Peterson

Name (Typed or Printed)
Notary Public in and for said State

78- 486653